SUZHOU POLYTIME MACHINERY CO., LTD

PROFORMA INVOICE

Invoice No.: POLYTIME20230526ZY01

Date: 2023-05-26

Buyer: Subterra Ltd.

Address: 858 Moo 2, Soi 1C/1 Bangpu Industrial Estate, Bangpumai, Muang Samutprakarn, Samutprakarn 10280, Thailand

Contact person: Mr.Rach

Phone number: 66891718477

Exporter: SUZHOU POLYTIME MACHINERY CO., LTD

Registered Office: No.2 Xingye Road, JinFeng Town, Zhangjiagang city, Jiangsu Province, China

Contact person: Kristen Zhang

Tel: +8615851618647

Email: Kristen@polytimetech.com

1. PRODUCT NAME, SPECIFICATION AND PRICE

No.	Name of Machines	Qty.
1	Screw loader	1set
2	PLPS93-36 Parallel twin screw extruder	1set
3	PLMOC450 OPVC pipe mould	1set
4	PLZK250-9m Double chamber vacuum calibration tank	1set
5	PLQY250-4 Four claws haul off(servo motor)	1set
6	PLQ250-2 Slitting machine	1set
7	PLHX450-12 Infrared heating machine	1set
8	PLMKG 450 Titanium alloy expansion die head connector	1set
9	PKKZ165-4.2mm OPVC pipe expansion moulding die	1set
	PKKZ216-5.4mm OPVC pipe expansion moulding die	1set
	PKKZ318-8.0mm OPVC pipe expansion moulding die	1set
	PKKZ420-10.5mm OPVC pipe expansion moulding die	1set
10	PLCX450-6 OPVC pipe calibration tank	1set
11	PLQY450-8 Eight claws haul off(servo motor)	1set
12	PLQG450 Planetary cutter	1set

Kristen

13	PLKK 450 Belling machine(included mould)	1set
14	Handheld Thickness Gauge	1set
15	Gravimetric dosing unit	1set
Total amount: **USD620,000CIF Bangkok port** Say US Dollar **Six Hundred Twenty Thousand** Only.		

2. TERMS OF PAYMENT

USD 186,000.00 by T/T paid as deposit after signing the contract;
USD 354,,000.00 by T/T paid before delivery and after approve of inspection for the main line;
USD 80,000.00 by T/T paid before delivery and after approve of inspection for the belling machine;

3. PACKING METHOD

Wood pallet, covered by plastic film

4. DELIVERY OF GOODS

4.1 Production Time:
The machine will be finished within 90 working days after receipt of deposit.

4.2 Inspection before Delivery:
The Seller will inform the Buyer that the machine is ready for inspection and testing. The Seller is responsible to arrange inspection and test running for four specification product by one mould before delivery at the Seller's workshop, but raw material and test-run cost is paid by buyer. If all machines meet normal operation requirements, the Buyer will arrange balance payment and cost for material consumed and test-run. If the results don't fulfill these specifications, the Seller will make the necessary adjustments to the machines and charge freely for additional material (for the material's normal consumption, please refer to the attached sheet of standard).

4.3 Documents Required:
4.3.1 All symbols on the machine and lay-out drawings, Electrical diagram, Installation, Operation Manual, will be in English.

4.3.2 Documents of Export:
The Seller should provide below original documents to the Buyer after the Buyer cancel the letter of guarantee at sight of copy of B/L and within 7 days after delivery date.
*B/L
*Commercial Invoice
*Packing list
*Certificate of Origin

5. OWNERSHIP

Before the Seller receives the full payment, even if the Buyer has received the equipment, the ownership of th e equipment belongs to the Seller.

6. INSTALLATION AND COMMISSIONING OF GOODS

6.1 Installation and Commissioning:

6.1.1 After machines are delivered to the buyer's factory, the seller will send technicians there for installation and commission. Meanwhile the buyer is responsible for preparing all basic infrastructures before their arrival. The technicians are responsible for assisting on-site installation and commission all machines to meet normal operation requirements. Meanwhile they will give free training lessons to operators of the buyer. The seller will send technicians in 7 days after the buyer prepare the basic infrastructures.

6.1.2 If buyer doesn't request installation and commissioning by Seller's engineer in 4 months since date of bill of lading, which to be accounted all the machines has been successfully tested by buyer.

6.2 Expenses:

The Buyer will bear the expense of visa formalities, airplane tickets (round-way), residency, meals and allowance of USD200 per day for each technician. All the fees should be paid before the Seller send technicians by T/T.

6.3 Timing of Installation and Commissioning:

The Seller will finish installation and commissioning within 20 days after the buyer prepares the basic infrastructures, including electric supply, water supply and necessary lifting plants, etc.

6.4 The Seller will be responsible for the maintenance and spare parts for the Buyers present production lines;

7. QUANTITY AND QUALITY GUARANTEE

7.1 Quantity/Quality Discrepancy during transportation:

In case of quality/quantity discrepancy during transportation to destination port, the buyer should file claim within 30 days after the arrival of the goods at port of destination. Insurance company and shipping company will be responsible for any discrepancy of the goods caused by shipping company and other transportation organization and/or post office.

7.2 Guarantee period and after-sales services: 13 months for machines part, 13 months for electric parts since the date on B/L.

During this guarantee period, the Seller will provide spare parts without any charge in case of quality discrepancy caused by the Seller. If the malfunctions are caused by incorrect operations of the Buyer, the Seller will provide the Buyer spare parts at cost price.

7.3 Long-term service:

The Seller will charge the Buyer cost price of spare parts beyond guarantee period and provide long-term technical guide.

8. CONTRACTUAL PENALTY

8.1 If the Seller still cannot complete production a week later than stipulated delivery date in the contract, the seller shall pay 0.1% of the total amount of buyer's contract to the buyer each day out of a week than stipulated delivery date. The total fines shall be no more than 5% of the total amount of contract.

8.2 The seller shall complete producing equipment within the stipulated delivery date and notify the buyer for acceptance inspection by written notice. The buyer (or the third authorized party or authorized seller) shall come to seller's factory for acceptance inspection within 20 days after getting written notice from the seller. If the buyer cannot have acceptance inspection or confirmation according to contract agreement, the buyer shall pay 0.1% of the total amount of buyer's contract to the seller each day out of stipulated delivery date. The total fines shall be no more than 5% of the total amount of contract. After acceptance inspection, the buyer and the seller shall confirm the rectification date. If the seller cannot complete rectification according to the agreed date, the seller shall pay 0.1% of the total amount of buyer's contract to the buyer each day out of stipulated delivery date. The total fines shall be no more than 5% of the total amount of contract. The seller shall rectify until equipment reaches the condition of delivery.

8.3 When equipment reaches the condition of delivery, the buyer shall pay the final payment within 15 working days. If the buyer delays payment, the buyer shall pay 0.1% of the total amount of buyer's contract to the seller each delayed day. The total fines shall be no more than 5% of the total amount of contract.

8.4 The seller shall prepare delivery within 15 working days after getting final payment. If the seller delays delivery, the seller shall pay 0.1% of the total amount of buyer's contract to the buyer each delayed day. The total fines shall be no more than 5% of the total amount of contract.

8.5 If the buyer doesn't pick up the machine for more than three months, after the seller inform the buyer that the machine is ready for inspection, the seller has right to unilaterally terminate the contract, and deposit belongs to the seller as the compensation.

8.6 In addition to the above situation, this contract can be terminated by agreement of both sides. If any side stops the contract without agreement of the other side, he is responsible to make compensation to the innocent side.

9. FORCE MAJEURE

In case of force majeure circumstances (war, military actions, governmental restrictions limiting export/ import, fire, flood, earthquake, strike, etc), The seller shall not be liable for failure or delay in delivery of the entire lot or a portion of the goods under this contract in consequence of any Force Majeure incidents.

10. ARBITRATION

All disputes arising from the execution of or in connection with this contract shall be settled amicable through friendly negotiation. In case no settlement can be reached through negotiation, the case shall then be submitted to the China International Economic and Trade Arbitration Commission in Shanghai for arbitration in accordance with its Provisional Rules of Procedure. The arbitral award is final and binding upon both parties.

11. VALIDITY OF CONTRACT

The contract is in duplicated. Each party has one copy. This contract will come into force as soon as it is signed by two parties. The period of validity of this contract is one year since signature of both sides.

Appoint account No.:

Beneficiary bank: Industrial and Commercial Bank of China Suzhou Branch zhangjiagang sub-branch
Bank Address: NO.121 SHAZHOU(W)Road ZHANGJIAGANG Suzhou Jiangsu
SWIFT CODE: ICBKCNBJSZU
Beneficiary:
Account number: 1102027009914572472
Name: SUZHOU POLYTIME MACHINERY CO., LTD
Address: No.2 Xingye Road, JinFeng Town, Zhangjiagang city, Jiangsu Province, China
Telephone: +8615962371181

Seller:	**Buyer:**
SUZHOU POLYTIME MACHINERY CO., LTD	**Subterra Ltd.**
苏州普利泰机械科技有限公司 Suzhou PolyTime Machinery Co.,Ltd.	
SEAL AND SIGNATURE: _____	**SEAL AND SIGNATURE:** _____